

24SMCV03769 24SMCV03769

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-13

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This is an application by plaintiff to continue the trial date. The trial had been set for September 28, 2026. But on June 18, 2026, the court on its own motion continued the matter to October 7, 2026—a week later. The court asked the parties to let it know quickly if this posed a problem. Plaintiff's counsel has a conflict on October 8. The court, frankly would have had more sympathy for this had it been brought to the court's attention later in June or July. The court does not know why plaintiff waited two months to say anything.

Plaintiff also notes that defendants are allegedly not providing discovery and that motions to compel have been filed. Those motions are not set to be heard until October 16, 2026, at the earliest.

The court is a bit troubled. The case was filed back in February 2023. The court is not sure why it is that discovery is up against the deadline. The court also still wonders about the delay in letting the court know of the conflict.

Even so, the court will inquire. If the court can accommodate the parties, it will do so. The trial date was changed on the court's own motion to accommodate the court's own travel plans. The court will not prejudice the parties or destroy already-set plans for that. Judges are entitled to a vacation now and again, but so are attorneys.